



REMOVAL FROM SERVICE (SPECIAL POWERS) (THIRD AMENDMENT) ORDINANCE, 2002

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**REMOVAL FROM SERVICE (SPECIAL POWERS) (THIRD AMENDMENT) ORDINANCE,
2002**

ORDINANCE NO. CVI OF 2002

An Ordinance further to amend the Removal from Service (Special Powers) Ordinance, 2000

WHEREAS it is expedient further to amend the Removal from Service (Special Powers) Ordinance, 2000 (XVII of 2000), for the purposes hereinafter appearing;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:---

1. Short title and commencement.-(1) This Ordinance may be called the Removal from Service (Special Powers) (Third Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Amendment of section 3, Ordinance XVII of 2000. In the Removal from Service (Special Powers) Ordinance, 2000 (XVII of 2000), hereinafter referred to as the said Ordinance; in section 3, in sub-section (2) in the second proviso, for the words "or removed from service or reduced in rank on ground of conduct which has led to a sentence of fine or of imprisonment" the words, brackets; letter and figures "under clause (a) of sub-section (2) of section 3A" shall be substituted.

3. Insertion of new section 3A, Ordinance, XVII of 2000. In the said Ordinance, after section 3, the following new section shall be added, namely:-

"3A. Procedure in case of conviction by a Court of law.-(1) Where a person in Government service or in Corporation Service on conviction by a Court of law is sentenced to imprisonment or fine, the competent authority shall examine the facts and the grounds on which the order convicting such person was passed by a Court of law.

(2) Where on examination the competent authority finds that order of imprisonment or fine is based on---

- (a) established charges of corruption or moral turpitude it shall pass order of dismissal from service of the delinquent person in Government service or in corporation service to be effective from the date of his conviction by a Court of law; and
- (b) charges other than corruption or moral turpitude it may, in the light of the facts and circumstances of the case, decide as to whether it is a fit case for taking departmental action under this Ordinance and if it so decides it may, subject to the provisions of sub-section (2) of section 3, impose any penalty authorized by this Ordinance as it may deem fit in the circumstances of the case.

